

Date: 07/24/2025

MEMORANDUM

Subj: **USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

Ref: (a) PR Number(s): _____

I. BACKGROUND:

1. In considering the references, FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that, under the circumstances of the contract action, only one source is reasonably available (e.g., urgency, exclusive licensing, brand-name, or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition because only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

1. Provide a description of the item or service required, to include

a) the name of the required source or brand name
BELL SOUTH (AT&T)

b) the required delivery date/period of performance and
SERVICE START DATE 01 APRIL 2026

c) its intended use.
LOCAL EXCHANGE CARRIER SERVICE FOR AGENCY OFFICES IN PANAMA

2. List the source(s) or known vendor(s) who are able to provide the above described item or service.

BELL SOUTH (AT&T)_____.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. _____ Only one responsible source (select all that apply):

1. _____ RESTRICTIVE RIGHTS: the source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service.

a. Explain what is subject to the restrictive rights.

b. If drawings are included, who is identified as "owning" the drawings.

2. _____ EXCLUSIVE LICENSING AGREEMENTS: The item or service is only available from the Original Equipment Manufacturer (OEM), or there is **ONLY ONE** authorized distributor or technical representative for the OEM.

a. Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

.

b. Identify the distributors / authorized technical representatives for the item or service. Provide evidence of the licensing or OEM certification agreement as an attachment to this document.

_____.

_____.

3. _XX_ OTHER REASON:

a. _XX_ CRITICAL EQUIPMENT: The required item is critical equipment, the failure of which poses a hazard to the operational system, the crew, or the environment.

i. Explanation on how requirement and intended purpose is critical: Phone lines and telecommunications are identified as critical as a primary resource for safety of life and operations _____

b. _____ STANDARDIZATION / BRAND NAME: only the specified make/model of the equipment/parts will satisfy the Government's needs for additional units or replacement items.

i. Identify Make / Model Number(s): _____

ii. Identify other systems with this Make / Model:

c. _____ FORM, FIT, AND FUNCTION: Item is direct replacement parts / components for existing equipment and must be compatible in terms of form, fit, and function with existing equipment / configurations.

i. Identify Make / Model of existing equipment:

ii. Describe how the equipment must be compatible with the existing configuration.

d. _XX_ OTHER:

Current lines in place are incorporated in legacy infrastructure in place. Currently the only circuits in place specific for support belong to AT&T based with outdated copper. Same similar circuits are no longer supported in current market and to maintain same level of service

will require complete overhaul of infrastructure. Change has been identified to assess the infrastructure for locations operating on same/similar antiquated circuitry, but full analysis has not been conducted. It is in the best interests of the government and for the safety of personnel to provide continuation of services to a new contract to follow on from contract N7027225P0022. Expectation of competition may result in offers received, however, to continue services other carriers will require complete overhaul of infrastructure that will provide extended delay in providing ring tone and result in an extensive length of time and costs to the government. Any of the factors of time or costs independently exceed the difference vastly provide no benefit to the government and as result will leave operational units without required communication support.

4. _____ UNUSUAL AND COMPELLING URGENCY: The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits. Urgent requirements are supplies or services that will result in work stoppage, or are mission critical and the routine processing time would injure the Government. The determination that the procurement for the above is an urgent and compelling requirement is based on the following:

- a. Date on which the requirement was identified: _____
- b. Required delivery date / Period of Performance: _____
- c. If the difference between a. and b. is more than one week, explain the delay in submitting the requirement.

- d. Estimated production lead time: _____
- e. Explanation of why delivery / commencement of services by the date required is needed: (explain the impact to the mission, any special circumstances or conditions, etc.)

- f. CASREP Number: _____

IV. _____ ANTICIPATED DOLLAR VALUE OF PROCURMENT:



V. CERTIFICATIONS AND APPROVALS:

Technical / Requirement Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

